

PERFORMANCE WORK STATEMENT

FOR

NON-REAL PROPERTY MAINTENANCE and REPAIR

AT

Eglin AFB, FL

10/22/2023

Non-Real Property Maintenance and Repair

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1.0 SECTION I: DESCRIPTION OF SERVICES

1.1 General: This is a non-personnel services contract to provide facility maintenance. The government shall not exercise any supervision or control over the subcontract service providers herein. Such subcontract service providers shall be accountable solely to the prime contractor who, in turn is responsible to the government.

1.1.1 Description of Services/Objectives: The contractor shall provide all management, personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform facility maintenance as defined in this Performance Work Statement (PWS) except for those items specified as Government Furnished Property and services. The contractor shall perform to the standards in this contract. This includes the planning, coordination, and surveillance of the activities necessary to ensure disciplined work performance and timely resources application to accomplish all tasking under the contract. The contractor shall be responsible for maintaining communication with the contracting officer (CO) and the contracting officer's representative (COR), and to immediately notify both the CO and the COR of any problems that would prevent timely performance of this contract. The contractor is responsible for and required to implement, and maintain management control systems necessary to plan, organize, direct, and control all activities under this contract.

1.1.2 The Contractor shall establish a Customer Service POC to serve as a receiving point for any/all outages, repairs, complaints related to the maintenance of the facilities under this contract. The contractor will establish a "service request" tracking system which at a minimum should encompass the; description of the service requested, date/time received, date/time issued, and the resolution. The contractor shall respond to a service request within the time parameters given for each category of service call.

1.1.2.1 Emergency: In event of health, safety, environmental, or property risk, the Contractor shall respond within one (1) hour and work continually until category level is reduced. This involves the correction of conditions that constitute an immediate danger to personnel, threat to property or require action to restore essential services. If the work cannot be completed immediately, the Contractor shall continue to work until the emergency condition is arrested, and schedule the remaining work for completion as soon as possible or as agreed to by the COR. Typical Emergency Service Calls include overflowing drains, roof leaks, broken water and/or frozen water pipes, electrical power outages, electrical defects which may cause fire or shock, gas leaks, loss of heat or air conditioning in occupied areas resulting in health concerns.

1.1.2.2 Urgent: Urgent work is required to correct a condition which could become an emergency, that could cause serious damages to property and become a safety risk and could seriously affect morale or has command emphasis. In event of immediate need of any urgent work that would have an impact in the health and safety and or it may result in inconvenience to occupant if not resolved. The Contractor shall respond to urgent service calls within four (4) hours after receipt and complete the work within eight (8) hours. Urgent service calls do not require continuous work until completed. If the work cannot be completed within eight (8) hours of commencement, the work shall continue until the urgent condition is arrested and schedule the remaining work for completion as soon as possible or as agreed to by the COR. Examples of urgent work are loss of heating, warm water loss, air conditioning failures.

1.1.2.3 Routine: In event of cosmetic repairs and maintenance, the Contractor shall respond within forty-eight (48) hours and complete the work within seven (7) workdays. This requirement involves work that is not classified as emergency or urgent.

1.2 Background: The 796 CES is seeking to establish a service contract for maintenance of secure/non-secure, specialized mobile office spaces. This will be all inclusive service to include, but not limited to structural, plumbing, mechanical, and electrical (interior), fire suppression and intrusion/security systems.

1.3 Inherently Governmental Function: The contractor shall not perform inherently governmental functions as defined in FAR Subpart 7.5 in relationship to this PWS.

1.4 Period of Performance: This is a 5-year contract with 1 base year and 4 option years.

1.5 Place of Performance: The contractor shall perform the services in the PWS at Eglin Air Force Base, Florida, and associated ranges and sites.

1.6 Specific Tasks:

1.6.1 Fire Alarm System Maintenance: Technicians performing work involving fire alarm components are directly responsible for performing fire alarm inspections per NFPA and fire alarm system preventive maintenance and repair services required under the terms of this contract in accordance with industry standards. (These services may be solicited out to a third-party vendor upon review of this PWS).

1.6.2 Electrical Work Interior and Exterior (Exterior high voltage work must be coordinated with Chelco and the 796 CES representatives): Electrical technicians must be certified to legally perform low voltage electrical work in accordance with federal laws, state laws, industry standards, and all applicable regulations. The Contractor shall respond to Work Orders for all lighting (interior or exterior), outlets, potential outages, interior breaker panels, and power fluctuation/interruption issues. The Contractor shall replace failed lamps, LEDs and/or ballasts, with the most efficient products available in accordance with existing building standards. In lieu of such standards, lamps shall be replaced with the most efficient products available matching type and color temperature of other lamps in visual range of the replacement. Replacing incandescent or fluorescent lamps in existing fixtures with lamps of differing design or light sources requires the input and approval of the CO or designee, and advisably a lighting expert plus the energy program manager, to ensure a successful replacement. If SSL LEDs are being considered as a replacement, the Contractor shall propose the LED replacement lamp or fixture before a widespread replacement is undertaken to ensure that all lighting criteria are met with respect to required illuminance levels, tenant satisfaction, light distribution, temperature of the lamps, Color Rendering Index (where important to the requirements) energy efficiency, and safety standards. This is a key consideration in performing satisfactory lighting operations and maintenance. Fluorescent lamps and ballasts, SSL components, exit light fixtures, batteries, and other items in any quantity are to be disposed of following all regulatory requirements to include but not limited to Federal, State, Industry, and all applicable local requirements.

1.6.3 HVAC: The Contractor shall maintain air distribution systems in accordance with their design and the approved sequence of operations and any other requirements within this Contract. The Contractor shall be responsible for making immediate adjustments or corrections that fall within the proposed maintenance plan, generated Work Orders and any other requirements under this Contract. The Contractor shall make recommendations and perform adjustments to controls,

adjust BAS settings, correct set points, and restore equipment to automatic operation as approved by the CO or designee. The Contractor shall identify all alarm points with originating point identification information (device ID, point number, description) to manipulate the system to monitor conditions, track and trend operational criteria. The Contractor shall make every reasonable effort to protect all assets regarding air distribution systems and associated equipment listed in this Contract from extreme environmental conditions. The Contractor shall use the (COR approved) industry preventive maintenance standards for Air Distribution asset maintenance. The Contractor's proposed maintenance plan shall include all the building equipment associated with the air distribution systems up to and including the final discharge of air into occupied spaces. At a minimum, the maintenance plan shall include applying lubricants, sealing filter racks against bypass air flow, cleaning fan housings, fans, coils, dampers, air diffuser/grilles, air handling unit (AHU) sections, and equipment rooms, and replacing consumable parts or components. Filter MERV ratings for AHUs, and similar air distribution assets will be recorded in the asset record for the equipment asset. Filter change PMs will be directly associated with the air handler or other air distribution equipment and should be set based off of industry standards, manufacturer's recommendations, and the industry accepted best practices.

1.6.4 Structural/Building Envelope/Architectural: The building envelope is to be kept in neat and clean appearance via pressure washing, environmentally safe chemical wash, or other methods of surfacing and surface care. Roofing should be inspected, replaced, and repaired in accordance with the industry standard, applicable governing doctrines, best practices, and manufacturer recommendations. The Contractor must maintain, repair, replace, modify, and restore all the architectural and structural components of the building per this Contract. Exterior components of this work including precast concrete systems, foundations, minor exterior wall components, retaining walls, docks, levelers, sidewalks, stucco, and drives. Interior components of this work include walls, floors, and doors, ceiling systems, soundproofing, insulation, flooring, specialty finishes and specialty lighting covers. The Contractor shall confirm with the CO or Designee in writing that the work is feasible and that upon completion that it is acceptable to the CO or Designee. The Contractor must perform all architectural and structural maintenance and repairs or replacements to the building interior and exterior extending to the agreed upon line of work termination. The Contractor must ensure the integrity of elements and materials in compliance with Federal, state, and national codes and standards (e.g., fireproofing materials, fire-stopping, fire and smoke doors, etc.). The Contractor must ensure the building is free of missing components or defects that could affect the safety, appearance, or intended use of the facility or could prevent any electrical, mechanical, fire protection and life safety, plumbing or structural system from functioning in accordance with its design intent. Architectural Repairs and Replacements are intended to maintain the integrity of the building envelope (preventing water leaks through proactively addressing cracks, masonry joint failures, reattaching loose roof flashing, fixing windows cracked by weather, seal failures, or facility settlement, water damaged ceiling tile) and address safety hazards (such as tripping concerns or hazards of falling materials).

1.6.5 Plumbing: Domestic plumbing systems, including drinking fountains and filters, restrooms, kitchens, locker rooms and showers, water heaters, irrigation systems, backflow preventers and shall be maintained, repaired, and kept functional to the point of service delivery as defined by American States Utility Service (ASUS) or 796 CES designee. The Contractor shall ensure all system drains, including storm drainage and roof drains, remain clear and unobstructed. The Contractor shall take any necessary steps to prevent odors emitting from drains or other plumbing systems into occupied space, including keeping water in traps appropriately maintained. The Contractor shall clear toilet and sink blockages, as necessary. Such requests shall be transmitted to the Contractor by the CO or designee through Work Order procedures. When replacing plumbing fixtures, the Contractor must use the most reduced water usage device per the approval, in advance,

by the CO or designee. The Contractor shall ensure compliance with Drinking Water Quality Management as outline by Federal, State, installation, and industry guidelines.

1.6.6 Emergency Generators: Back-up emergency generators, when installed will be maintained/repaired/tested per the Manufactures guidelines. Emergency generators that are specific to this PWS will be fueled, unless required for maintenance or repair. During emergency operations, generators shall be refueled based on manufacturers fuel burn rate estimates. At no time shall the emergency generators be without fuel.

1.6.7 Intrusion Alarms: Intrusion alarm systems to include key swipes, keypads, cypher locks and any other installed equipment, are to be maintained and/or repaired on a continuous basis. (These services may be solicited out to a third-party vendor upon review of this PWS).

1.6.8 Over and Above Repair:

1.6.8.1 The Contractor shall complete all maintenance required to maintain operational readiness. All maintenance, parts, and materials not associated with the preventive maintenance program (i.e. component replacement due to failure) will be approved by a Government representative and invoiced under the not-to-exceed above and beyond maintenance contract line-item number. (CLIN)

1.6.8.2 The Government will determine how the replacement parts or materials will be purchased at the time the discrepancy is reported. If the Government decides to have the Contractor purchase the part or material the Contractor shall invoice under the above and beyond maintenance contract line-item number.

1.7 Historical Data: The tasks described above have been performed in the past by full-time contract employees.

1.8 Minimum Qualifications:

1.9 Deliverables:

1.9.1 Below is a list of deliverables under this contract

Support Area	Title	Delivery Date/Description
Management	Manpower Reporting	See 1.9.2 below.
Management/ Technical	Monthly Progress Report	As coordinated with the customer
Technical	Monthly Status Report	As negotiated
Technical Report	Planning Documents	As required
Technical Report	Trip Report/ Meeting Minutes	As required

1.9.2 Contractor Manpower Reporting Application (eCMRA): The contractor shall report ALL contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract via the secure data collection site (i.e. eCMRA). The contractor shall register in eCMRA within 30 days of contract award. The contractor is required to completely fill in all required data fields using the following web address <http://www.ecmra.mil>. Reporting inputs will be for the labor executed during the period of performance during each government fiscal year (FY), which runs 1 October through 30 September. While inputs may be reported any time during

the FY, all data shall be reported no later than 31 October of each calendar year. Contractors may direct questions to the above eCMRA help desk.

Information from the secure web site is considered proprietary in nature when the contract number and contractor identity are associated with the direct labor hours and direct labor dollars. At no time will any data be released to the public with the Contractor name and contract number associated with the data. Data for Air Force service requirements must be input at the Air Force eCMRA link. However, user manuals for government personnel and contractors are available at the eCMRA link at <http://www.ecmra.mil>.

1.9.3 Data: The government has unlimited rights to all deliverables of this contract.

1.9.4 Inspection: Deliverables will be inspected by the government within seven workdays of receipt. Progress meetings may be held as required.

1.10 Contractor Travel: There will not be travel required at this time for the execution of this PWS.

1.11 Small Business Subcontracting Program: The contractor must submit a subcontracting plan for small business, small, disadvantaged businesses, Historically Under-utilized Business Zones (HUBZones), women-owned small businesses, service-disabled veteran owned small businesses, veteran-owned small businesses, historically black colleges and universities and minority institutions, and Alaska Native corporations and Indian Tribes. The plan shall contain goals for each of the categories, as well as 10 other elements identified (11 total) in FAR 19.704 and FAR Clause 52.219-9. This rating element assesses the contractor's performance in meeting the requirements of the plan and achievements against the negotiated goals. The contractor may use one of three types of plans: subcontracting plan, commercial plan (for commercial items), and the DoD comprehensive (test) plan. (See FAR 19.704, 52.219-9 for additional guidance.) An Individual Subcontracting Report (ISR) shall be submitted semi-annually during contract performance for the periods ending March 31 and September 30. Reports are due 30 days after the close of each reporting period, unless otherwise directed by the CO. A report is also required for each contract within 30 days of contract completion. Summary Subcontract Reports (SSR), including those submitted for comprehensive subcontracting plans under the DoD Small Business Subcontracting Plan (Test Program), shall be submitted semi-annually for the 6 months ending March 31 and the 12 months ending September 30. Reports are due 30 days after the close of each reporting period. For commercial plans, a SSR is due 30 days after the end of the government's fiscal year. For the CPARS rating, the government will use the most recent ISR and/or SSR that the contractor submitted and will not delay the evaluation if the rating period is different than the subcontracting reporting period.

1.12 Contractor Phase-In and Phase-Out Transition:

1.12.1 Contractor Phase-In: To minimize any decreases in productivity and to prevent possible negative impacts on additional services, the contractor shall have personnel on board, during the phase in/ phase out periods. The incoming contractor's personnel shall receive 60 calendar days of on-the-job training (OJT) by the incumbent contractor. Incoming contractor personnel to be trained by the incumbent contractor shall possess, prior to training, all special skills, licenses, and certifications needed to perform the specific tasks in this PWS. The training will cover unique features of all systems and equipment. The OJT may be augmented by any applicable instruction from manuals and videotapes. Contractor phase-in will not be necessary for an incumbent contractor.

1.12.2 Contractor Phase-Out: The outgoing contractor shall allow the incoming contractor to interview for employment with the outgoing contractor's personnel, provided the work interruption time is reasonable.

1.12.2.1 The outgoing contractor shall provide 60 calendar days of OJT training to the incoming contractor. The outgoing contractor shall integrate the incoming contractor personnel into the regular work schedule in order to maximize OJT benefits. Contractor personnel to be trained shall possess, prior to training, all required special skills needed to perform the specific tasks in this PWS. The training objective is to enhance technical skills so that the transfer of responsibilities will be efficient.

1.12.2.2 During the 60-calendar day training period, the outgoing contractor shall perform all requirements in the PWS.

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2.0 SECTION II: SERVICE SUMMARY

2.1 General: The contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success but do not represent all contract performance requirements. All contract performance requirements in this PWS will be monitored.

2.2 Performance Evaluation: Performance of a service shall be evaluated to determine whether it meets the performance requirements of this contract. Re-performance of unacceptable services at no additional cost is the preferred course of action when appropriate. In the case of issued Corrective Action Reports (CARs), the Contracting Officer shall take appropriate measures according to inspection of services clause in the contract, i.e., FAR 52.246-4, 52.246-5, or 52.212-4(a).

SS #	Performance Objective	PWS Paragraph	Performance Threshold	Rating Criteria
Quality				
1	Response for placed work orders in the system, to include after hours	1.1.2.1 1.1.2.2 1.1.2.3	Emergency: Respond w/ 1hr Urgent: Respond w/ 4 hrs Routine: Respond w/48 hrs	Exceptional: 90% - 100% Very Good: 80% - 89% Satisfactory: 70% - 79% Marginal: 69% - 50% Unsatisfactory: <50%
Schedule				
2	Provide Annual/Quarterly/Monthly Inspection Schedules	4.0 all	Maintain a minimum 70%-79% compliance for each option year	Exceptional: 90% - 100% Very Good: 80% - 89% Satisfactory: 70% - 79% Marginal: 69% - 50% Unsatisfactory: <50%
Cost control				
3	Utilize industry standard pricing for labor and materials		Maintain a minimum 70%-79% compliance for each option year	Exceptional: 90% - 100% Very Good: 80% - 89% Satisfactory: 70% - 79% Marginal: 69% - 50% Unsatisfactory: <50%
Management				
4	Provide all deliverables	1.9.2	Maintain a minimum 70%-79% compliance for each option year	Exceptional: 90% - 100% Very Good: 80% - 89% Satisfactory: 70% - 79% Marginal: 69% - 50% Unsatisfactory: <50%
Small Business				
5	Execute Subcontracting Plan	1.11	Maintain a minimum 70%-79% compliance for each option year	Exceptional: 90% - 100% Very Good: 80% - 89% Satisfactory: 70% - 79% Marginal: 69% - 50% Unsatisfactory: <50%

Regulatory				
6	Financial, human trafficking, environmental, safety and labor	4.2	Maintain a minimum 70%-79% compliance for each option year	Exceptional: 90% - 100% Very Good: 80% - 89% Satisfactory: 70% - 79% Marginal: 69% - 50% Unsatisfactory: <50%
Other Areas				

2.3 Government Quality Assurance: The government shall inspect and evaluate the contractors' performance to ensure services are received in accordance with requirements set forth in this contract. The COR will use the contractor's work schedule, or modified version thereof, to record validation results. Results of the validation then becomes the official Air Force record of the contractor's performance. Government surveillance of tasks not listed in the PWS or by methods other than those listed in the PWS (such as provided for by the Inspection of Services clause) may occur during the performance period of this contract. Such surveillance will be done according to standard inspection procedures or other contract provisions. Any action taken by the CO as a result of surveillance will be according to the terms of this contract.

2.3.1 The government will periodically evaluate the contractor's performance in accordance with the Quality Assurance Surveillance Plan (QASP). The government may inspect each task as completed and increase the number of quality assurance inspections if deemed appropriate because of repeated failures discovered during surveillance inspections or because of repeated customer complaints. Likewise, the government may decrease the number of quality assurance inspections if performance dictates.

2.3.2 When an observation indicates defective performance, the COR will require the contract manager or representative at the site to initial the observation. The initialing of the observation does not necessarily constitute concurrence with the observation, only acknowledgment that he or she has been made aware of the defective performance. When a performance threshold has not been met or contractor performance has not been accomplished, the COR will initiate and provide the CO a CAR for issuance to the contractor. The contractor shall respond to the CAR IAW instructions provided and return it to the CO within 10 calendar days of receipt.

2.4 Performance Assessment

2.4.1 Periodic Surveillance: This method requires the COR to employ a "spot check" style of evaluation based on the contractor's services. Periodic surveillance will be conducted on a scheduled basis (daily, weekly, monthly, quarterly, semi-annual or annually) and may be adjusted, based on quality trends.

2.4.2 Customer Complaints: The COR will receive and investigate all complaints. The COR shall be responsible for validating customer complaints. The CO shall make final determination of the validity of customer complaint(s) in cases of disagreement with the COR and the contractor. Validated customer complaints shall be corrected within 2 hours of notification. CO will validate corrective action.

2.4.3 Review of Audits: COR reviews result of the contractor's accepted quality management system audits and related quality metrics.

2.4.4 100 Percent Inspection: This method requires the COR to do 100 percent inspection on all task performed. Appropriate for tasks that occur infrequently. Usually only deals with Safety and/or Security, unless mandated by an Air Force Instruction (AFI) or industry standard.

2.5 Quarterly Progress Meetings: The CO, Program Manager (PM), Functional Services Manager (FMS), COR, other government personnel as appropriate, and the contractor shall meet quarterly to discuss the contractor's performance.

The following issues, at a minimum, shall be discussed:

- Opportunities to improve the contract,
- Any modifications required of the contract,
- Unsatisfactory inspections,
- Valid customer complaints against each performance objective observed, and
- Steps taken by the contractor to prevent occurrences in the future.

The contractor shall provide a summation of unsatisfactory inspections and customer complaints and provide insight into any identified trends.

2.5.1 The minutes of these meetings will be reduced to writing, signed by the CO and any other signatures as deemed appropriate, distributed to the functional area and the contractor. Should the contractor not concur with the minutes, the contractor will provide a written notification within 5 working days to the CO identifying areas of non-concurrence for resolution.

2.6 Contracting Officer Representative (COR): CORs are representatives of the CO and will participate in the administration of this contract. After award of the contract, the contractor will be provided a letter identifying the COR and setting forth their duties and authorities. The COR is not authorized to change any of the terms and conditions of the contract/task order.

2.6.1 Multifunction Team (MFT): The contractor's manager with the CO, Contract Administrator (CA), COR, and other government personnel shall meet on a regular basis. The MFT will establish how often meetings are needed based on contract complexity. The contractor may request a meeting with the CO when the contractor believes such a meeting is necessary. If the CO or CA deems necessary, written minutes of any such meetings shall be recorded by the CA in the contract file and signed by the PM and the CO or CA. If the contractor does not concur with any portion of the minutes, such nonoccurrence shall be provided in writing to the CO within 10 calendar days following receipt of the minutes.

2.7 Quality Control: In compliance with the applicable contract clauses FAR 52.246-4 thru FAR 52.246-5, entitled, "Inspection of Services (Fixed Price and Cost-Reimbursement)," or FAR 52.212-4(a) Commercial Terms and Conditions Inspection/Acceptance, develop and maintain an effective quality control program to ensure services are performed IAW this PWS, applicable laws and regulations and IAW best commercial practices.

2.7.1 Quality Control Plan (QCP): The contractor shall be required to submit a QCP within 10 days after contract award. The CO will notify the contractor of acceptance or required modifications to the plan. The contractor shall make appropriate modifications and obtain acceptance of the plan by the CO within 5 days. The contractor's QCP shall contain, at a minimum, the following descriptive items:

a. The inspection system shall cover all services. Description shall include specifics as to the areas to be inspected on a scheduled and unscheduled basis, frequency of inspections, and the title and organizational placement of the inspector(s).

b. The methods to be used for identifying and preventing defects in the quality of services performed.

c. How the records will be kept. Records must document all inspections and corrective or preventive actions taken.

2.8 Contractor's Performance: The government assesses a contractor's performance on an on-going basis, both positive and negative, and provides a record on a given contract during a specified period of time.

2.8.1 Past Performance Information (PPI): PPI can be provided to other government agencies, as requested.

2.8.2 Contractor Performance Assessment Report (CPARS): Depending on the estimated value of the contract, formal assessment and reporting of contractor performance is documented using the CPARS system. The contractor will be provided a copy of their assessment 365 days from contract award. The contractor shall have 60 days to review and submit comments for the evaluation activity's consideration before the assessment is made final. Past Performance assessment reports will be protected by all parties and treated by government personnel as **"For Official Use Only/Source Selection Information in accordance with FAR 2.101 and 3.104"**.

3.0 SECTION III: GOVERNMENT FURNISHED PROPERTY and SERVICES

3.1 Government Furnished Services (Base Support).

The government will negotiate per Appendix 3.

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4.0 SECTION IV: GENERAL INFORMATION

4.1 Hours of Operation: The contractor shall perform the services required under this contract during the following hours: 6:00 am to 6:00 pm Monday thru Friday except Federal holidays or when the government facility is closed due to local or national emergencies, administrative closings, or similar government directed facility closings. For other than firm fixed price contracts, the contractor will not be reimbursed when the government facility is closed for the above reasons. On occasion, an employee will be required to work on weekends and Federal holidays. The government will notify the contractor within 24 hours of such occurrence.

4.1.1 Recognized Holidays: The contractor will perform emergency services only on holidays.

New Year's Day	Labor Day	Juneteenth
Martin Luther King Jr.'s Birthday	Columbus Day	
President's Day	Veteran's Day	
Memorial Day	Thanksgiving Day	
Independence Day	Christmas Day	

*If the holiday falls on a Saturday, it will be observed on the preceding Friday. If the holiday falls on Sunday, it will be observed on the following Monday.

4.1.2 Work Schedules, Leave, and Absences: Monthly schedules will be provided for the upcoming work month to the COR. Any changes in the schedule shall be coordinated between the Contract Manager and the COR.

4.2 Contract Personnel

4.2.1 Contract Manager (CM): The contractor shall provide a contract manager and alternate(s) who are knowledgeable of the PWS requirements. The contractor shall submit the name, address, telephone number and a resume of the CM to the CO within 2 days of contract start date. The list shall be kept current throughout the life of the contract. The CM or alternate(s) shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The CM or alternate(s) shall be available within 24 hours to meet on the installation with government personnel designated by the CO to discuss problem areas. The CM and alternate(s) shall be able to read, write, and speak English. The CM shall be able to effectively communicate with contractor employees.

4.2.1.1 Personnel Roster: The contractor may be required to provide a personnel roster consisting of names and other pertinent personnel data to the requiring activity for the purposes of 100% accountability real-world and exercise situations. The personnel roster shall be updated as individuals are removed and added.

4.2.2 Contractor Employees:

Certifications: Contractor employees shall have current and valid professional certifications and licenses required to perform the work in this PWS, prior to contract award. All certification and licensing requirements by Federal, State, and local agencies shall be complied with at the contractor's expense.

Contractor Qualifications: The contractor shall utilize employees possessing adequate training, skills, and knowledge to perform the requirements of this contract.

Employee Training: The contractor shall give all training required to meet requirements of the PWS unless otherwise specified within the PWS or as otherwise approved by the CO. The contractor shall maintain training and experience records for each employee during the period of this contract that reflect sufficient personnel are qualified to accomplish all tasks required by this contract. Provide status of employee training upon the government's request.

English Language: Employees who deal directly with customers will be required to communicate clearly and concisely with the customers in English. This requirement is strictly for the purpose of efficiently performing the contract tasks.

4.2.3 Use of Government Employees: The contractor shall not employ any person who is an employee of the U.S. Government if employing that person would create a conflict of interest. In addition, the contractor shall not employ any person who is an employee of the Department of the Defense if such employment would be contrary to the policies contained in AFI 64-106, Chapter 1, *Industrial Labor Relations Activities*.

4.2.3.1 Employment of Spouses/Dependents: The contractor shall not employ any person who is a spouse or dependent child of a Department of Defense employee (either military or civilian) when such employee would be placed in a conflict of interest or appearance of a conflict of interest by virtue of such employment.

4.2.3.2 Off-duty Military Personnel: The contractor is cautioned that off-duty active military personnel hired under this contract may be subject to permanent change of station, change in duty hours, or deployment. Military Reservists and National Guard members may be subject to reorder to active duty. The abrupt absence of these personnel could adversely affect the contractor's ability to perform. However, their absence at any time shall not constitute an excuse for nonperformance under this contract.

4.2.3.3 Identification of Contractor Employees: All contract personnel attending meetings, answering government telephones, and working in other situations where their contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are government officials. They must also ensure that all documents or reports produced by contractors are suitably marked as contractor products or that contractor participation is appropriately disclosed.

4.2.3.4 Organizational Conflict of Interest (OCI): Contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent OCI as defined in FAR Part 9.5. Any potential instance of OCI must be reported to the CO immediately.

4.2.3.5 Personal Conflict of Interest (PCI): The term "PCI" means that a contractor employee assigned to the contract has interests which (i) may diminish his/her capacity to give impartial, technically sound, objective assistance and advice in performing this contract, (ii) may otherwise result in a biased work product under this contract, or (iii) may result in an unfair competitive advantage. Any potential instance of PCI must be reported to the CO immediately.

4.2.3.6 Privately Owned Vehicles: Each contractor employee driving a privately owned vehicle on the installation must carry minimum liability insurance as required by the state. Contractor

employees shall adhere to all posted speed limits and shall not use hand-held cellular telephones while driving on the installation for phone calls or texting. Use of seatbelts is mandatory. Any contractor employee cited for driving under the influence will have their driving privileges immediately revoked for a period to be determined.

4.3 Continuation of Essential DoD Contractor Services During Crisis: In Accordance With DoDI 1100.22, (12 Apr 2010) Continuation of Essential DoD Contractor Services During Crises, DFARS 237.76, and the Air Force implementation thereof, unless otherwise directed by the CO or COR, it is determined that the services as identified in this PWS are essential for performance during a crisis.

(1) All services in this PWS are designated as essential services for performance during crisis IAW DFARS 237.76, “Continuation of Essential Contractor Services” and the contractor shall prepare a plan for performing these services in accordance with DFARS 252.237-7023. Hereafter, the personnel identified by the contractor to perform these services shall be referred to as “Mission Essential Contractor Personnel.”

(2) The requirement for continuation of essential services could possibly be as currently scheduled in the PWS; however, the schedule will be determined based on the crisis requirements. The CO or COR will contact the contract manager by telephone or in person that essential services are required. This will be followed up in writing and subsequently by modification to the contract to incorporate the requirements via full text or by reference. The contractor may file a proposal for cost or other impacts under the Changes clause or a Request for Equitable Adjustment.

(3) Within 30 days after award, the contractor shall provide a written list of all “Mission Essential Contractor Personnel” to the CO or COR. The list shall identify names and base location where each employee will perform work under this contract.

(4) The contractor shall develop contingency plans for tasks designated as essential no later than 30 days after the start of the contract to provide reasonable assurance of continuation of services during crisis conditions.

4.3.1 Military Personnel: The government retains the option to assign military representatives on a full or part time basis at all contracted sites as deemed necessary for reasons, such as, to receive training, to assist in contingency efforts at site, or to evaluate site performance (not inclusive). The presence of military personnel shall in no way diminish the contractor’s responsibility to provide the operation services specified in this PWS.

4.3.2 Contingency Plan: The Contractor shall submit a contingency plan to the CO at contract start date, which explains how the contractor will expand operations in emergency or contingency situations to ensure all services are provided, how the contractor will ensure there are no interruptions of routine contract services due to labor disputes. Such plan shall be approved by the CO prior to contractor assuming duties under this contract.

4.3.3 Labor Disruptions: The government reserves the right to take over performance of this contract in the event of a labor strike, bankruptcy, default or period of non-performance by the contractor’s employees. In such events, the services will be performed exclusively by government personnel and not a mix of government and non-striking contractor employees. At the direction of the CO, the contractor agrees to remove its non-striking work force from the performance site and not interfere in any way with government performance. The contractor further agrees, under such circumstances, to permit the government to use any essential contractor-furnished property. The government will not compensate the contractor for performance during this period.

4.4 Conservation of Utilities: The contractor shall instruct employees in utilities conservation practices. The contractor shall be responsible for operating under conditions that preclude the waste of utilities.

4.5 Environmental Protection: The contractor shall comply with all applicable federal, state and local laws, regulations and standards that are or may become applicable to contractor's activities in performance of this PWS.

4.5.1 Permits: The contractor shall be solely responsible for obtaining at its cost and expense any environmental permits required for its operations under the contract, independent of any existing permits held by the government. The contractor acknowledges that the government will not consent to being named a secondary discharger or co-permittee for any operations or activities of the contractor under the contract. In the event the government is named as a secondary discharger or co-permittee for any activity or operation of the contract, the government shall have the right to take reasonable actions necessary to prevent, suspend, or terminate such activity or operations, including terminating this contract, without liability or penalty.

4.5.2 Right to Inspect: The government's rights under this contract specifically include the right for government officials to inspect upon reasonable notice the work site for compliance with environmental, safety and occupational health laws and regulations, whether or not governmental is responsible for enforcing them. Such inspections are without prejudice to the right of duly constituted enforcement officials to make sure inspections. The government normally will give the contractor 24 hours prior notice of its intention to inspect, unless it determines the entry is required for safety, environmental, operations or security purposes.

4.5.3 Non-compliance: If the contractor is found to not be in compliance with any of these regulations, there may be cause for the facility to shut down until the contractor, when within the contractor's control or the government, has remedied the problem. Any sanitary deficiencies shall require immediate correction.

4.5.4 Spill Response: The contractor is responsible to report and promptly clean up all spills in a manner consistent with current environmental regulations. In the event that it is necessary to utilize government material, equipment, or personnel to clean up a contractor caused spill, the contractor shall be required to reimburse the government for all associated costs.

4.5.5 Audit: This contract may be subject to audit by any and all cognizant government agencies. The contractor shall make available all records, which it maintains with respect to this contract, to such agencies.

4.5.6 Failure to Insist On Compliance: The failure of government to insist, in any one or more instances, upon performance of any of the terms, covenants or conditions of this contract shall not be construed as a waiver or relinquishment of government's right to the future performance of any such terms, covenants or conditions and the contractor's obligations in respect to such future performance shall continue in full force and effect.

4.5.7 Green Procurement Program (GPP): The GPP is mandatory federal acquisition program that focuses on the purchase and use of environmentally preferable products and services. Many different items are covered by the GPP. Recycled-content products are designated by the Environmental Protection Agency (EPA). "Bio-based" products made from renewable plant materials are designated by the United States Department of Agriculture (USDA). Energy and water efficient products are designated by the Department of Energy (DOE). GPP also requires the government to avoid purchasing

Ozone Depleting Substances (ODS) and EPA-designated priority chemicals. Environmentally preferable purchasing (EPP) is a voluntary program, and it encourage the purchase of goods and services that have decreased effects on human health and the environment (compared to the competing goods and services that serve the same purpose), but are not already required by one of the mandatory GPP elements.

(1) Green Procurement is mandated except when the contractor can show that the product with recycled content does not meet intended specifications, has excessive costs, or cannot be delivered in time to support the schedule of the contract. If the contractor is unable to locate a specified product meeting the GPP requirement, identify the issue to the CO or GPM for guidance. GPP is based on legal requirements and the Department of Defense facilities are subject to enforcement action if these requirements are ignored.

(2) The contractor shall make maximum use of products containing recovered materials that are EPA-designated items IAW FAR Clause 52.223-17, Affirmative Procurement of EPA-Designated Items in Service and Construction Contracts. The list of EPA-designated items is available at <https://www.epa.gov/smm.comprehensive-procurement-guidelines-cpg-program>.

4.6. MISCELLANEOUS PARAGRAPHS:

4.6.1 Freedom of Information Act (FOIA): All official government records affected by this contract are subject to the provisions of the FOIA (5 U.S.C. 552/DoD 5400.7-R/AF Supplement). Any request received by the contractor for access/release of information from these records to the public (including government/contractor employees acting as private citizens), whether oral or in writing, shall be immediately brought to the attention of the CO for forwarding to the Base FOIA Manager to ensure proper processing and compliance with the Act.

4.6.2 For Official Use Only (FOUO): The contractor shall comply with DoD 5400-7-R, Chapter 4, DoD Freedom of Information Act (FOIA) Program requirements. This regulation sets policy and procedures for the disclosure of records to the public and for marking, handling, transmitting, and safeguarding FOUO material.

4.6.3 Notification of Debarment/Suspension Status: The contractor shall provide immediate notice to the CO in the event of being suspended, debarred or declared ineligible by any other federal department or agency, or upon receipt of a notice of proposed debarment from another DoD Agency, during the performance of this contract.

4.6.4 Correspondence: The government singularly identifies each project with a contract number at time of award. The contract number is a unique identifier to purposely and permanently represent an awarded project. The government issued contract number is to be referenced on all official communication starting upon notice of award.

4.6.5 Post Award Conference: The contractor agrees to attend any post award conference convened by the CO IAW FAR Part 42.5. These meetings shall be at no additional cost to the government.

4.6.6 Privacy Act: Work on this contract may require that personnel have access to information protected by the Privacy Act. Contractor personnel shall adhere to the Privacy Act, Title 5 of the U.S. Code, Section 552a and applicable agency rules and regulations when handling such information.

4.6.7 Records: All records created and received by the contractor in the performance of this contract shall be maintained and readily accessible. Records shall remain the property of the government.

4.6.8 Insurance: The contractor shall obtain the necessary insurance as required by FAR part 28.3. The minimum amounts of insurance will be maintained IAW FAR 28.307-2.

4.6.9 Subcontracting: The contractor shall ensure that any subcontractor providing services on behalf of the contractor has been approved by the CO prior to any such performance. The subcontractor shall not have a negative performance history or be suspended or otherwise prohibited from doing business with the government.

4.6.10 Data Rights: The government has unlimited rights to all documents/material produced under this contract. All documents and materials, to include the source codes of any software, produced under this contract shall be government owned and are the property of the government with all rights and privileges of ownership/copyright belonging exclusively to the government. These documents and materials may not be used or sold by the contractor without written permission from the CO. All materials supplied to the government shall be the sole property of the government and may not be used for any other purpose. This right does not abrogate any other government rights.

4.6.11 Fire Prevention: The contractor shall take all necessary precautions to prevent fires (Do Not Use Mechanical Rooms as Storage) in the units and contractor-furnished and government-furnished facilities while performing any work under this contract. In the event fires do occur, the contractor shall immediately notify the Base Fire Department at 911. The contractor shall then notify the requiring activity and the CO. The contractor shall brief and document its employees monthly in fire safety issues and procedures in reporting fires.

4.6.12 Flightline Driving: Employees will not be required to drive on the flightline in performance of this PWS.

4.6.13 Hazardous Materials:

(1) Prior to use, the contractor shall provide the Base Hazardous Material Pharmacy, through the CO, a list of all hazardous materials the contractor brings onto government property and shall submit and AF Form 3952 along with a Material Safety Data Sheet (MSDS) for each Hazardous Chemical listed in OSHA Hazard Communication Standard 29 CFR 1910.1200. The purpose of the inventory is to provide information for Emergency Planning and Community Right-to-Know Act (EPCRA) reporting.

(2) Any products that meet the criteria of "Hazardous Waste" must be bar coded and tracked until permanently removed from government property. Criteria for identifying hazardous waste are contained in Subpart C of 40 CFR Part 261. NOTE: Products containing chlorofluorocarbons (CFC's) or ozone depleting substances shall not be allowed or approved for use.

(3) The contractor shall ensure that all contractor employees complete the local Air Force Hazardous Communication, HAZMart, and hazardous waste training. The contractor shall appoint a primary and alternate HAZMART and Hazardous Waste monitor. Monitors are responsible for training all contractor personnel regarding hazardous material containers maintained on base and complete MSDSs immediately upon receipt of new chemicals, products, or materials.

4.6.14 Inclement Weather: If the base closes due to inclement weather, the contractor will be released, by the installation commander, with the general population of the base at no decrement to contract price. The contractor will follow the local procedures for reporting in inclement weather as advertised on local television and radio stations.

4.6.15 Section 508 Compliance: The contractor shall support the government in its compliance with Section 508 throughout the development and implementation of the work to be performed. Section 508 of the Rehabilitation Act of 1973, as amended (29 U.S.C. 794d) requires that when federal agencies develop, procure, maintain, or use electronic information technology, federal employees with disabilities have access to and use of information and data that is comparable to the access and use by Federal employees who do not have disabilities, unless an undue burden would be imposed on the agency. Section 508 also requires that individuals with disabilities, who are members of the public seeking information or services from a Federal agency, have access to and use of information and data that is comparable to that provided to the public who are not individuals with disabilities, unless an undue burden would be imposed on the agency.

4.7 Security

4.7.1 General:

4.7.1.1 The contractor shall comply with all base security regulations and with actions dictated by force protection condition changes/measures. For real-world situations/exercises, changes to force protection conditions could impact contractor performance of work and can include denial of access to the installation to perform work.

4.7.1.2. The contractor and its employees shall comply with all base traffic regulations.

4.7.1.3. Contractor employees are prohibited from possessing weapons, firearms or ammunition, on themselves or within contractor-owned or privately owned vehicle while on Air Force installations.

4.7.1.4. . The contractor shall report suspicious activity (refer to Eglin AFB Contractor Antiterrorism Awareness pamphlet) to Security Forces at 850-883-2000 in a timely manner.

4.7.2 Required Training:

4.7.2.1. Contractor will be offered Level I - Antiterrorism Awareness Training by the government. This training provides contractor employees with the requisite knowledge necessary to remain vigilant for possible terrorist threats. Coordination for training should be done by the requiring unit Antiterrorism Representative (ATR) after contract award. AT Level I training can be taken at <https://jkodirect.jten.mil/Atlas2/faces/page/login/Login.seam> for non-CAC holders. Tracking for each contractor or subcontractor employee is the responsibility of the COR or unit ATR.

4.7.2.2. Contract employees requiring a Common Access Card (CAC) shall receive documented Information Assurance (IA) training, by the government, prior to receiving access to the local area network (LAN). Authorized users will receive initial IA orientation and annual awareness training to ensure they know, understand, and apply the IA requirements of Air Force information and IAs. The minimum orientation and awareness requirements for users are outlined in DoD 8570.01-M. IA Program. The contractor shall comply with the established Command, Control, Communication, and Computers (C4) Systems IA program to integrate security education, training, and awareness covering the Communications Security (COMSEC), Computer Security (COMPUSEC), and Emissions Security (EMSEC) disciplines.

4.7.3 Security Clearance Levels: Contractor personnel performing work under this contract must have a (TBD) security clearance at time of the proposal submission and must maintain the level of security

required for the life of the contract. The security requirements are in accordance with the attached DD254. The unit security monitor will initiate this form.

4.7.4 Additional Security Requirements:

4.7.4.1. Physical Security. The contractor shall be responsible for safeguarding all government equipment, information and property provided for contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured.

4.7.5 Key Control

4.7.5.1 Procedures: The contractor shall establish and implement methods of making sure all keys/key cards issued to the contractor by the government are not lost or misplaced and are not used by unauthorized persons. NOTE: All references to keys include key cards. No keys issued to the contractor by the government shall be duplicated. The contractor shall develop procedures covering key control that shall be included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The contractor shall immediately report any occurrences of lost or duplicate keys/key cards to the CO.

4.7.5.2 Lost/Duplicated Keys: In the event keys, other than master keys, are lost or duplicated, the contractor shall, upon direction of the CO, re-key or replace the affected lock or locks; however, the government, at its option, may replace the affected lock or locks or perform re-keying. When the replacement of locks or re-keying is performed by the government, the total cost of re-keying or the replacement of the lock or locks shall be deducted from the monthly payment due the contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the government and the total cost deducted from the monthly payment due the contractor.

4.7.5.3 Authorized Use: The contractor shall prohibit the use of government issued keys/key cards by any persons other than the contractor's employees. The contractor shall prohibit the opening of locked areas by contractor employees to permit entrance of persons other than contractor employees engaged in the performance of assigned work in those areas, or personnel authorized entrance by the CO.

4.7.5.4 Lock Combinations: The contractor shall establish and implement methods of ensuring that all lock combinations are not revealed to unauthorized persons. The contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations. These procedures shall be included in the Contractor's Quality Control Plan.

4.7.6 Computer Security (COMPUSEC)

4.7.6.1 Local Area Network (LAN): The government will provide limited access to the existing LAN to include email capability. The contractor shall not use the LAN for purposes other than for work required under this contract.

4.7.6.2 Common Access Card (CAC): The contractor's PM or alternate shall complete all necessary documents for all contractor personnel requiring access to Eglin AFB. Common Access Cards (CAC) shall be required for all on-site contractor personnel. The contractor's PM shall ensure the government representative in the local organization designated to authorize issuance of contractor's CACs (*i.e.* Trusted Agent (TA) receives a Visitor Request for each employee through the Trusted Agent Security System (TASS). Contractor personnel shall electronically submit application to the TA, once approved set up appointment at <https://rapids-appointments.dmdc.osd.mil/> or go to the Military Personnel Section.

4.7.6.3 National Agency Check Investigations (NACI): The contractor shall have current favorable National Agency Check investigations for its employees, from the government, by contract start date and throughout the life of contract. These investigations shall be submitted by the government at no additional cost to the service provider.

4.7.6.4 Restricted Area Badges: The contractor shall obtain a Restricted Area Badge for all personnel from the recipient of services for entrance to restricted areas prior to commencing work under this contract. If not, the contractor shall be escorted by an authorized escort.

4.7.7 Contractor Access To Air Force Installations: All contractor employees will be subject to a criminal history background check IAW Air Force Manual (AFMAN) 31-113, Installation Perimeter Access Control, as stipulated in the Installation Commander's memorandum to the 96 Security Forces Office dated 23 Apr 2015 (the AFMAN and memorandum are both limited access documents but more details on the requirements/process in terms of background checks can be provided by the CO upon request). Vehicle registration, proof of insurance, and a valid driver's license must be presented for vehicles. Installation Commanders may deny access and credentials based on information obtained during identity vetting that indicates the individual may present a threat to the good order, discipline, and morale of the installation.

Base Access. For contractor personnel who wish to obtain long-term Base access via an Air Force Materiel Command (AFMC) Form 496, Application for AFMC Identification Card, IAW Air Force Federal Acquisition Regulation Supplement (AFFARS) Clause 5352.242-9000, Contractor Access to Air Force Installations, the prime contractor shall submit a written request on company letterhead to the CO with the following information (prior to submitting a request for Base access via an AFMC Form 496): 1) contract number, 2) location of work, 3) expiration date (must be on or before contract's expiration date), and 4) names of employees/ subcontractor employees needing access to the base, to include each employee's company name.

It is recommended that the prime contractor provide a copy of the request letter to each employee for verification purposes when the employee comes to get their AFMC Form 496 signed. Employees for which no request letter can be found or provided will result in the employee being asked to return on another date/time so verification can be made.

Base passes will be limited to the length of the contract not to exceed 3 years from the date the AFMC Form 496 is submitted to the designee for signature.

Individuals requesting DBIDS passes/cards through AF Form 496s must be on an authorized DD Form 577 signed by the current Commander/Director of the presiding unit.

The AFMC Form 496 will be reviewed/approved by the CO, then taken by the contractor employee to the Eglin AFB Pass & Registration Office located at the West entrance for the security portion and issuance of the Base pass.

Only employees who will be working on the contract consistently/frequently should be submitted for a long-term base pass.

4.7.7.1 Visitors/contractors with driver's licenses from ME, MN, MO, MT, and WA (exceptions are EDL-Enhanced driver's licenses from MN & WA) will not be able to obtain base access without another form of identification as an identity proofing document. The list of authorized IDs can be

found in the REAL ID Act of 2005. Please visit the Department of Homeland Security's (DHS) website to get the latest information, <https://www.dhs.gov/current-status-states-territories>.

During performance of the contract, the contractor shall be responsible for obtaining required identification for newly assigned personnel.

The contractor shall be responsible for prompt return of credentials and vehicle passes for: 1) any employee who no longer requires access to the work site; 2) upon request by a CO; and 3) upon completion or termination of the contract. The prime contractor shall ensure that all base identification passes issued to employees and subcontractor employees are returned to the issuing office. Failure to comply with these requirements may result in withholding of payment.

Notification Of Government Security Activity And Visitor Group Security Agreements. This contract contains a DD Form 254, DoD Contract Security Classification Specification, and requires performance at a government location in the United States. Prior to beginning operations involving classified information on an installation identified on the DD Form 254, the contractor shall take the following actions:

- (1) Within thirty (30) days of contract award, notify the security police activity shown in the distribution block of the DD Form 254 as to:
 - (a) The name, address, and telephone number of this contract company's representative and designated alternate in the U.S. or overseas area, as appropriate;
 - (b) The contract number and military contracting command;
 - (c) The highest classification category of defense information to which Contractor employees will have access;
 - (d) The Air Force installations in the U.S. (in overseas areas, identify only the APO number(s)) where the contract work will be performed;
 - (e) The date contractor operations will begin on base in the U.S. or in the overseas area;
 - (f) The estimated completion date of operations on base in the U.S. or in the overseas area; and
 - (g) Any changes to information previously provided under this clause.

***This requirement is in addition to visit request procedures contained in DoD 5220.22-M, National Industrial Security Program Operating Manual.*

- (2) Prior to beginning operations involving classified information on an installation identified on the DD Form 254 where the contractor is not required to have a facility security clearance, the contractor shall enter into a Visitor Group Security Agreement (or understanding) with the installation commander to ensure that the contractor's security procedures are properly integrated with those of the installation. As a minimum, the agreement shall identify the security actions that will be performed:
 - (a) By the installation for the contractor, such as providing storage and classified reproduction facilities, guard services, security forms, security inspections under DoD 5220.22-M, classified mail services, security badges, visitor control, and investigating security incidents; and
 - (b) Jointly by the contractor and the installation, such as packaging and addressing classified transmittals, security checks, internal security controls, and implementing emergency procedures to protect classified material.

4.8 Safety

It is the contractor's responsibility to ensure its employees and managers have a comprehensive understanding of and full compliance with OSHA requirements. Detailed information is available on the

OSHA website at <http://www.osha.gov>. It is the contractor's sole responsibility for compliance with OSHA, Public Law 91-596. The contractor shall comply with all federal, state and local laws, and Air Force Instructions for the protection of their employees while working on an Air Force Installation or property. The protection of contractor employees is exclusively the obligation of the contractor. Contractor shall manage all work areas to ensure the safety of building occupants, base personnel, or visitors in or near the areas.

The contractor shall submit a Safety and Health Plan that describes the capabilities and processes to ensure compliance with safety and health requirements during the performance of the work described in the solicitation. The contractor's plan shall include appropriate measures to ensure the contractor reacts promptly to investigate, correct and track alleged safety and health violations and/or uncontrolled hazards in contractor work areas. Contractor must ensure that personnel are properly trained on the equipment they are tasked to operate. The contractor shall develop site specific mishap reporting procedures which result in damage to government property or injury to Air Force personnel. These procedures are to be included in the safety and health plan for review. In accordance with AFI 91-202, AFMC Supplement, Safety Program, the contractor shall submit a Safety and Health Plan to the CO for review and acceptance by the safety office prior to contract award.

4.8.1 Safety Equipment: The contractor shall furnish personal safety equipment for its employees in performance of this contract. Safety equipment includes Steel or composite toe safety shoes or boots, eyewear, respirators, and gloves.

4.8.2 Safety Threats: The government reserves the right to restrict the employment, under this contract, of any contractor employee, or prospective contractor employee who is identified as a potential threat to health, safety, security, general wellbeing, or the operational mission of the installation and its population. Contractor shall perform background checks, at contractor's expense, to ensure that said employee has not been convicted of any sexual crime or any crime against children.

4.8.3 Substance Abuse Testing: The consumption of alcoholic beverages or illegal drugs by contractor personnel, while on duty, is strictly forbidden. Contractor employees shall be subject to substance abuse testing as a result of a mishap investigation when an individual's actions or inactions are suspected as factors in a mishap sequence. The CO or COR may identify the employees to be tested and the drugs and substances for which those employees must be tested. The service provider shall accomplish the specified testing using a certified (i.e., a certified lab that meets Department of Health and Human Services (DHHS)/ Substance Abuse and Mental Health Services Administration (SAMHSA) certification) medical substance abuse testing facility. Results of the test(s) shall be provided to the government solely for the purpose of completing an investigation. The contractor shall immediately remove any employee who is found to be under the influence of alcohol or drugs.

4.8.4 Appearance: Contractor personnel shall present a clean and neat appearance. Contractor's uniform must be easily recognized. This shall be accomplished by wearing distinctive clothing bearing the name of the company and/or by wearing badges that contain the company name and employee name.

4.8.5 Uniforms: The contractor shall furnish uniforms for its employees in performance of this contract. Uniforms shall be consistent throughout the staff. Uniforms will be clean, presentable, and in good repair.

5.0 SECTION V: APPENDICES & EXHIBITS

APPENDIX 1

DEFINITIONS

Contract Administrator (CA). The individual within the contracting office who performs the day-to-day administration of the contract. The contract administrator may also be the contracting officer.

Contracting Officer (CO). The dully appointed Government agent authorized to award or administer contracts. The contracting officer is the only person authorized to contractually obligate the Government.

Contracting Officer Representative (COR). Individual who monitors a Contractor daily and who is involved in every aspect of a contract to ensure the Contractor is in compliance.

Corrective Action Report (CAR). Used to document unacceptable performance by the Contractor.

Defect. Any non-conformance with requirements specified in the contract.

Defective Service. A service output that does not meet the standard of performance specified in the contract for that service.

Fair Wear and Tear. The deterioration of items attributed to normal usage.

Government Furnished Property (GFP). Facilities, equipment, tools, supplies, parts, or any other items furnished for the concessionaire's use by the Government.

Major discrepancy. A major finding is defined as a condition that would endanger personnel, jeopardize equipment or system reliability, affect safety of flight, or warrant discontinuing the process or equipment operation.

Minor discrepancy. A minor finding is defined as an unsatisfactory condition that requires repair or correction, but does not endanger personnel, affect safety of flight, jeopardize equipment reliability, or warrant discontinuing a process or equipment operation.

Performance Assessment. A process that measures success towards achieving defined performance objectives or goals defined within the performance thresholds in the services summary or the process of assessing progress towards achieving the objectives/goals developed in a performance plan or partnering agreement.

Performance Indicator. A measurable characteristic of an output of a work process. Generally synonymous with attribute.

Performance Management. The use of performance measurement information to effect positive change in organizational culture, systems, and processes, by helping to set agreed upon performance goals, allocating and prioritizing resources, informing managers to either confirm or change current policy or program directions to meet those goals, and sharing results of performance in pursuing those goals.

Performance Objective. The outcome associated with successful contract performance in a specific area. This is a critical success factor in achieving the organization's mission, vision and strategy which, if not achieved, would likely result in a significant decrease in customer satisfaction or risk mission failure.

Obtaining multi-services/sub-services performed at a certain measurable standard and consistently ensures success in achieving the objectives critical to the mission.

Performance Threshold. The minimum performance level of a performance objective required by the Government.

Quality Assurance Program Coordinator (QAPC). The individual designated by the contracting squadron commander to manage the installation QA program.

Quality Control (QC). Those actions taken by a Concessionaire to control the performance of services so that they meet the requirements of the SOW.

Services Summary (SS). A summary of the performance objective and performance threshold required by the Government in concessionaire performance. Also known as a Performance Requirements Summary or Services Delivery Summary or Performance Requirements Document.

Standard. An exact value, a physical entity, or an abstract concept, established and defined by authority, custom, or common consent to serve as a reference, model, or rule in measuring quantities or qualities, establishing practices or procedures, or evaluating results. A fixed quantity or quality. A defined measure of comparison.

ACRONYMS

AFI	Air Force Instruction
ADPE	Automated Data Processing Equipment
AFOSH	Air Force Occupational Safety and Health
AGE	Aerospace Ground Equipment
CM	Contract Manager
CO	Contracting Officer
COR	Contracting Officer Representative
DV	Distinguished Visitor
FC	Functional Commander
GFP	Government-Furnished Property
IAW	In Accordance With

APPENDIX 2

WORKLOAD ESTIMATES

BUILDING	SQUARE FOOTAGE
15130	9800
LRSO	34000
AUDITORIOM	18000
NEW	29000 +
96 OG/Duke	7933

APPENDIX 3

GOVERNMENT FURNISHED FACILITIES

GOVERNMENT FURNISHED FACILITIES

Note: (To be determined by CO and space utilization alongside COR)

GOVERNMENT FURNISHED TOOLS

There will not be tools issued for contractor use in performance of this PWS.

GOVERNMENT FURNISHED PROPERTY

APPENDIX 4

APPLICABLE PUBLICATIONS AND FORMS

Publications and forms that apply to the PWS are listed below. The publications and forms have been coded as "M" (Mandatory) or "A" (Advisory). The contractor is obligated to follow those publications and use those forms coded as mandatory to the extent specified in other sections of the PWS. The contractor shall be guided by those publications or use those forms coded advisory to the extent necessary to accomplish requirements in the PWS. The appropriate web sites are listed below to obtain all publications and forms listed. Supplements or amendments to listed publications from any organizational level may be issued during the life of the contract. The contractor shall immediately implement those changes in publications. The contractor is required to follow the requirements in AFI 21-101, paragraph 1.7, "Use of Technical Orders (TO) and Supplements" and paragraph 1.8,"Publications". The DOD Directives, Instructions, and Forms may be located at <http://www.dtic.mil/whs/directives>. Air Force publications and forms may be accessed at <http://www.e-publishing.af.mil>.

To ensure currency of assigned technical orders with applicable changes and supplements, they will be ordered and received through the Technical Order Distribution Office (TODO) under a designated account number. Any additions or deletions to the Transient Aircraft library must be coordinated with the COR. The contractor shall be obligated to maintain and keep all publications and technical orders current. The contractor shall use the applicable technical order indexes and publication indexes to keep files current. Most of these publications are available on the Internet at <https://www.toindex-s.wpafb.af.mil/>.